

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
FRIDAY, AUGUST 14, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**JOAQUIN ALFONSO ANTONIO RAMIREZ; ET AL. vs. VOLKSWAGEN GROUP OF AMERICA, INC.; ET AL.
Case No. CU24-05898**

Motion for Summary Judgment

TENTATIVE RULING

PARTIES TO APPEAR.

The Court notes that Plaintiff has not filed any written opposition.

**SANTINO DE LOS SANTOS WALKER; ET AL. vs. VOLKSWAGEN GROUP OF AMERICA, INC.; ET AL.
Case No. CU24-07609**

Defendants' Motion for Judgment on the Pleadings

TENTATIVE RULING

Defendants VOLKSWAGEN GROUP OF AMERICA, INC. ("VW") and VOLKSWAGEN OF FAIRFIELD ("Dealer") move for judgment on the pleadings against the causes of action for fraudulent inducement and negligent repair within Plaintiffs SANTINO DE LOS SANTOS WALKER and ROSHONDA F. WALKER's complaint. Summarized as relevant, Plaintiffs' complaint alleges that VW violated the Song-Beverly Consumer Warranty Act in that it failed to repair or repurchase Plaintiffs' 2023 Volkswagen ID.4

(the “Vehicle”) after the Vehicle manifested defects within the warranty period, and VW further concealed existence of the Vehicle’s driver assistance system defects from Plaintiffs prior to purchase. Dealer negligently stored or repaired the Vehicle.

Legal Standard. A defendant may move for judgment on the pleadings on the basis that the complaint against him does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 438, subds. (b)-(c).) The grounds for such a motion must appear on the face of the pleadings or from judicially noticeable materials. (Code Civ. Proc., § 438, subd. (d).) The standard for granting a motion for judgment on the pleadings is essentially the same as that for sustaining a general demurrer: that is, whether the pleadings and matters judicially noticeable reveal that a party is entitled to judgment as a matter of law. (*Schabarum v. California Legislature* (1998) 60 Cal.App.4th 1205, 1216.) As with a demurrer, then, a court considering a motion for judgment on the pleadings accepts as true all properly pleaded facts of a complaint but does not accept as true mere conclusions or deductions of fact or law. (*Greif v. Sanin* (2022) 74 Cal.App.5th 412, 426.) Admissions contradicting the allegations of the party making the admissions are properly considered on a motion for judgment on the pleadings. (*Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540; *Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604-605.)

Sufficiency of Pleading Fraudulent Inducement. *Dhital v. Nissan North America Inc.* (2022) 84 Cal.App.5th 828 (*Dhital*), an opinion issued in our own First District Court of Appeal, offers applicable precedent as to the sufficiency of Plaintiff’s fraudulent inducement cause of action.

In *Dhital* the plaintiff brought a lemon law action over his Nissan vehicle’s faulty transmission and additionally alleged fraudulent inducement. (*Dhital, supra*, 84 Cal.App.5th at p. 834.) The trial court sustained Nissan’s demurrer on the fraudulent inducement cause of action, deciding that the economic loss rule barred the claim. (*Id.* at p. 835-836.) The appellate court reversed, finding both that the economic loss rule did not bar the claim and that the plaintiff’s allegations sufficiently stated fraudulent inducement (insufficiency of pleading being an alternative ground for affirming the trial court ruling that Nissan urged on appeal). (*Id.* at p. 845.)

Regarding the economic loss rule, the *Dhital* court first described the rule: “[i]n general, there is no recovery in tort for negligently inflicted ‘purely economic losses,’ meaning financial harm unaccompanied by physical or property damage.” (*Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 922; *Dhital, supra*, 84 Cal.App.5th at p. 837.) “[W]here a purchaser’s expectations in a sale are frustrated because the product he bought is not working properly, his remedy is said to be in contract alone, for he has suffered only ‘economic’ losses...The economic loss rule requires a purchaser to recover in contract for purely economic loss due to disappointed expectations, unless he can demonstrate harm above and beyond a broken contractual promise.” (*Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34 Cal.4th 979, 988 (*Robinson*).) Examples of such harm include “where a breach of duty directly causes physical injury; for breach of the covenant of good faith and fair dealing in insurance contracts; for wrongful

discharge in violation of fundamental public policy; or where the contract was fraudulently induced.” (*Id.* at pp. 989-990.) “[I]n each of these cases, the duty that gives rise to tort liability is either completely independent of the contract or arises from conduct which is both intentional and intended to harm. (*Ibid.*) The *Dhital* court noted that *Robinson* states its point quite plainly: fraudulent inducement is an exception to the economic loss rule. (*Dhital* at p. 839.) *Dhital* further observed that although *Robinson* discussed affirmative misrepresentations from the defendant as opposed to fraudulent concealment it did not state that only cases of affirmative misrepresentation qualify for the exception. (*Ibid.*) Rather, *Robinson*’s plain statement was that tort recovery should be allowed where the underlying duty is independent of the contract, and fraudulent inducement by concealment originates independent of the resulting contract because it literally predates formation of the contract. (*Id.* at pp. 840-841.)

Robinson and *Dhital* make it clear that the economic loss rule should not bar Plaintiffs’ fraudulent inducement claim in the instant case. Plaintiffs’ claim is based on conduct independent of the resulting contract and is expressly authorized in *Robinson*.

Regarding sufficiency of pleading, the *Dhital* court first discussed the basic law. Fraudulent inducement is a subset of fraud and so requires the same elements be proven: (1) a misrepresentation, (2) knowledge of falsity, (3) intent to induce reliance, (4) justifiable reliance, and (5) damages. (*Dhital, supra*, 84 Cal.App.5th at p. 843; *Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294-295.) Fraud must always be pleaded with specificity. (*Linear Technology Corp. v. Applied Materials, Inc.* (2007) 152 Cal.App.4th 115, 132.) The *Dhital* plaintiff’s allegations included that Nissan manufactured and distributed more than 500,000 vehicles with faulty transmissions; that Nissan knew or should have known of the faults from premarket testing and consumer complaints to both the National Highway Traffic Safety Administration (“NHTSA”) and to Nissan itself; and that Nissan issued Technical Service Bulletins (“TSBs”) regarding the transmission problem. (*Dhital* at pp. 833-834.) The *Dhital* court found all of this sufficient: the allegations stated that Nissan made lemons with transmission defects, Nissan knew of the transmission defects and the hazards they posed, Nissan had exclusive knowledge of the defects but did not disclose them to consumers, Nissan intended to conceal the information, and the plaintiff would not have bought the vehicle in question had the plaintiff known the information. (*Id.* at p. 844.) Allegations that the plaintiff bought the car from a Nissan dealership with a Nissan-backed warranty and that dealerships are Nissan’s agents for purposes of sale sufficed to state a buyer-seller relationship between the parties. (*Ibid.*) The court rebuffed Nissan’s argument that the plaintiff was not specific enough about what it should have disclosed where the plaintiff described the effects of the transmission defect and alleged that Nissan knew of these effects from premarket testing and consumer complaints. (*Ibid.*)

Plaintiffs’ allegations in the instant complaint almost line up well with those of the *Dhital* plaintiff. Plaintiffs here describe the driver assistance system defect at issue as causing unwarranted sudden braking and false alerts to the driver of imminent collision. (Complaint at ¶¶ 48-50.) Plaintiffs allege that VW knew or should have known of the transmission system defect from pre- and post-production market testing, consumer

complaints, and warranty data. (*Id.* at ¶¶ 51-52.) Plaintiffs allege that VW concealed information about the driver assistance system defect that would have changed Plaintiffs' purchase decision had it been known to Plaintiffs. (*Id.* at ¶ 57.)

However, Plaintiffs merely allege obtaining the Vehicle under a warranty with VW. (Complaint at ¶¶ 10-11.) They do not say anything more than that. Plaintiffs are not clear about how precisely they obtained the Vehicle and so do not state facts supporting a buyer-seller transactional relationship that imposed on VW a duty of disclosure.

Economic Loss and Negligent Repair. Per the above, the economic loss rule prevents "recovery in tort for negligently inflicted 'purely economic losses,' meaning financial harm unaccompanied by physical or property damage." (*Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 922; *Dhital, supra*, 84 Cal.App.5th at p. 837.) Plaintiffs' cause of action for negligent repair states that they took the Vehicle to Dealer for repair but Dealer did not properly store, prepare, and/or repair the Vehicle, causing damages. (Complaint at ¶¶ 61-65.) The complaint does not state that the cause of action is based on a contract between Plaintiffs and Dealer, nor does it show that Plaintiffs suffered only economic loss. The economic loss rule does not bar Plaintiffs' cause of action for negligent repair.

Sufficiency of Pleading Negligent Repair. Plaintiffs' cause of action for negligent repair fails for lack of facts supporting its conclusions. The complaint states only conclusions, without supporting facts, that Dealer did not properly store, prepare, and/or repair the Vehicle.

Leave to Amend. Leave to amend is proper where identified defects are amenable to cure. (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768.) It is the pleading party's burden to show the trial court that a reasonable possibility exists that amendment can cure identified defects in that party's pleading. (*Murphy v. Twitter, Inc.* (2018) 60 Cal.App.5th 12, 42.) The court finds Plaintiffs demonstrate a reasonable possibility that amendment can cure identified defects.

Conclusion. Defendants' motion for judgment on the pleadings is granted with leave to amend.

ROBERT ALLEN ENGLAND vs. BIANCA NICOLE PAPPA
Case No. CU25-11442

Motion to Set Aside Entry of Default

TENTATIVE RULING

Defendant Pappa's motion to set aside the entry of default is granted.

Until statutory requirements for proper service of process are satisfied, the court lacks personal jurisdiction over a defendant. (*Ruttenberg v. Ruttenberg* (1997) 53 Cal.App.4th 801, 808; *Honda Motor Co. v. Superior Court* (1992) 10 Cal.App.4th 1043, 1048.) “Thus, a default judgment entered against a defendant who was not served with a summons in the manner prescribed by statute is void.” (*Dill v. Berquist Constr. Co.* (1994) 24 Cal.App.4th 1426, 1444.)

The summons and complaint may be served by substituted service if they cannot with reasonable diligence be personally delivered to the person to be served by leaving a copy at the person’s dwelling house or usual place of abode in the presence of a competent member of the household who is at least 18 years of age and is informed of their contents and by thereafter mailing a copy to the same address. (Code Civ. Proc. § 415.20(b).) “Substituted service is permissible, however, only after a good faith effort at personal service has first been made: the burden is on the plaintiff to show that the summons and complaint ‘cannot with reasonable diligence be personally delivered’ to the individual defendant.” (*Bd. of Trustees of Leland Stanford Junior Univ. v. Ham* (2013) 216 Cal.App.4th 330, 337, quoting *Am. Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 389.) Two or three attempts at personal service at a proper place should fully satisfy the reasonable diligence requirement. (*Stafford v. Mach* (1998) 64 Cal.App.4th 1174, 1182.)

“When jurisdiction is obtained by a prescribed form of constructive notice, the statutory conditions upon which service depends must be strictly construed; there must be strict compliance with the mode prescribed in the statute.” (*Eagle Elec. Mfg. Co. v. Keener* (1966) 247 Cal.App.2d 246, 250-251.) A requirement of due diligence necessitates a sufficient affidavit or declaration that states evidentiary facts demonstrating the due diligence. (*Id.* at 251.)

The proofs of service do not demonstrate proper service of the summons and complaint on Defendant. The original proof of service, filed on December 16, 2025, indicated that substituted service was made on “Mother of defendant” at Defendant’s home. (Proof of Service (12/16/25).) It did not indicate that copies of the summons and complaint were thereafter mailed to the address. (*Ibid.*) It did not present a declaration of diligence demonstrating any attempts at personal delivery. (*Ibid.*) A second, amended, proof of service was filed on February 10, 2026. (Proof of Service (2/10/26).) This document indicates that a copy of the summons and complaint was eventually mailed to the address where substituted service had been attempted on January 29, 2026. (*Ibid.*) But, the amended proof of service no longer describes how the substituted service had been effected and still fails to include a declaration of diligence. (*Ibid.*)

DAVID LOPEZ; ET AL. vs. AMERICAN HONDA MOTOR CO., INC.
Case No. CU25-09816

Defendant's Motion for Judgment on the Pleadings; Defendant's Motion to Strike

TENTATIVE RULING

Defendant AMERICAN HONDA MOTOR CO., INC. moves for judgment on the pleadings against Plaintiffs DAVID LOPEZ and ANTONIO LOPEZ's complaint alleging causes of action for (1) violation of Civil Code section 1793.2, subdivision (d), (2) violation of subdivision (b) of the same, (3) violation of subdivision (a)(3) of the same, (4) breach of the implied warranty of merchantability pursuant to Civil Code section 1791.1, and (5) fraudulent inducement. Plaintiffs allege they obtained a 2018 Honda Accord (the "Vehicle"), manufactured and warranted by Defendant, in 2018. The Vehicle contained defects, most notably including a defective sensory and automatic braking system, that Defendant concealed from Plaintiffs.

Defendant simultaneously moves to strike the complaint's punitive damages allegations and prayer.

Legal Standard. A defendant may move for judgment on the pleadings on the basis that the complaint against him does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 438, subds. (b)-(c).) The grounds for such a motion must appear on the face of the pleadings or from judicially noticeable materials. (Code Civ. Proc., § 438, subd. (d).) The standard for granting a motion for judgment on the pleadings is essentially the same as that for sustaining a general demurrer: that is, whether the pleadings and matters judicially noticeable reveal that a party is entitled to judgment as a matter of law. (*Schabarum v. California Legislature* (1998) 60 Cal.App.4th 1205, 1216.) As with a demurrer, then, a court considering a motion for judgment on the pleadings accepts as true all properly pleaded facts of a complaint but does not accept as true mere conclusions or deductions of fact or law. (*Greif v. Sanin* (2022) 74 Cal.App.5th 412, 426.) Admissions contradicting the allegations of the party making the admissions are properly considered on a motion for judgment on the pleadings. (*Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540; *Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604-605.)

Statutes of Limitation. Commercial Code section 2725 states that a breach of warranty claim must be commenced within four years of accrual, with accrual occurring at tender of delivery unless the warranty explicitly extends to future performance of goods and discovery of the breach must await the time of such performance. In that excepted case accrual occurs when the breach is or should have been discovered. Plaintiffs allege that the Vehicle had a three-year / 36,000-mile warranty. (Complaint at ¶ 7, Exhibit A.) This is a warranty that extends to the future performance of goods, per *Krieger v. Nick Alexander Imports, Inc.* (1991) 234 Cal.App.3d 205. Plaintiffs' claims based on the express warranty, being their first three, are all subject to delayed discovery rules.

Likewise, the implied warranty claim Plaintiffs bring has a four-year statute of limitations and can have its date of breach be a delayed discovery after the time of sale. (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1304-1306.)

A cause of action sounding in fraud has a three-year statute of limitations. (Code Civ. Proc., § 338, subd. (d).) The delayed discovery doctrine is well-known to apply to causes of action sounding in fraud. (*Mills v. Forestex Co.* (2003) 108 Cal.App.4th 625, 641.)

However, Plaintiffs do not state facts supporting application of delayed discovery doctrine to any of their claims. Plaintiffs present only conclusory allegations that they discovered the breach of warranty when Defendant was unable to conform the Vehicle to warranty after a reasonable number of repair attempts. (Complaint at ¶ 14.) Plaintiffs plead no facts showing that the Vehicle was taken to Defendant for repairs and that problems existed before and after the repair attempts. They plead that the Vehicle suffered sensing defects, transmission defects, engine defects, and electrical defects and in the context of their later allegations explaining that vehicles of the Vehicle's make, model, and year have a serious defect in their automatic road condition sensors and automatic braking systems this is sufficient to state the Vehicle at some point did not conform to warranty; but they do not state facts showing Defendant's inability to conform the Vehicle to warranty after a reasonable number of repair attempts. (*Id.* at ¶¶ 11, 46-48.) Therefore they do not state facts supporting their claim that they discovered Defendant breached its warranty at a date later than the 2018 purchase of the Vehicle.

Plaintiffs' claims as presented are all time barred.

Motion to Strike. Code of Civil Procedure section 436, subdivision (a) permits a court to strike out any irrelevant, false, or improper matter inserted in any pleading, upon a motion or in its discretion. Irrelevant matters are those not essential to the statement of a claim or defense or not pertinent to or supported by an otherwise sufficient claim or defense and demands for relief not supported by the allegations. (Code Civ. Proc., § 431.10.) "The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice;" therefore, a motion to strike may not be based upon extrinsic evidence such as a declaration. (Code Civ. Proc., § 437, subd. (a).)

Civil Code section 3294, subdivision (a) provides that punitive damages are only available in actions not arising from breach of contract if is "proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice." This means that a plaintiff's pleading asking for punitive damages must plead facts to support a finding of oppression, fraud, or malice. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.) "Malice" means conduct intended to cause injury or despicable conduct carried on with a willful and conscious disregard of the rights or safety of others; "oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights; and "fraud" means

intentional misrepresentation, deceit, or concealment of a material fact with intention to cause injury. (Civ. Code, § 3294, subd. (c).) “Despicable” conduct refers to that which is “base, vile, or contemptible” and is something more than simple willful and conscious disregard for others. (*College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.)

Plaintiffs’ causes of action being time barred, they do not sufficiently state any cause of action that can support imposition of punitive damages.

Leave to Amend. Leave to amend is appropriate where pleading deficiencies are amenable to correction. (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768.) It is the pleading party’s burden to demonstrate a possibility that identified defects could be corrected by amendment. (*Murphy v. Twitter, Inc.* (2018) 60 Cal.App.5th 12, 42.) The court finds Plaintiffs demonstrate a reasonable possibility that amendment can cure identified defects.

Conclusion. Defendant’s motion for judgment on the pleadings is granted with leave to amend. Defendant’s motion to strike is granted with leave to amend.

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